

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Hanley	Team: Squad #04	CCRB Case #: 201601051	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 02/01/2016 1:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/1/2017	Precinct: 62		
Date/Time CV Reported Tue, 02/02/2016 10:07 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/08/2016 11:20 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Carlo Chu	10752	941560	062 PCT
2. POF Hillary Chambers	00605	947209	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Carlo Chu	Abuse: PO Carlo Chu did not obtain medical treatment for § 87(2)(b)	A . Unsubstantiated
B . POF Hillary Chambers	Abuse: PO Hillary Chambers did not obtain medical treatment for § 87(2)(b)	B . Unsubstantiated
C . POM Carlo Chu	Abuse: PO Carlo Chu refused to provide his name and shield number to § 87(2)(b)	C . Unsubstantiated
D . POF Hillary Chambers	Abuse: PO Hillary Chambers refused to provide her name and shield number to § 87(2)(b)	D . Unsubstantiated

Case Summary

On February 2, 2016, § 87(2)(b) filed this complaint with IAB via telephone. The complaint was forwarded to the CCRB on February 8, 2016 via IAB log # 2016-4019.

On February 1, 2016, at approximately 12:00 pm, § 87(2)(b) called 911 and requested police assistance at his residence at § 87(2)(b) in Brooklyn regarding a tenant/landlord dispute. At approximately 12:30 PM, PO Carlo Chu and PO Hillary Chambers of the 62nd Precinct arrived at the location.

During the interaction § 87(2)(b) asked both officers for an ambulance and explained he had a brain aneurysm and was asthmatic. The officers told § 87(2)(b) that he was “walking around just fine” and told him to go back inside the house (**Allegation A and B**). § 87(2)(b) asked both officers for their names and shield numbers and they ignored his request and walked back to their patrol car (**Allegation C and D**). The officers left without further interaction with § 87(2)(b). No summonses were issued or arrests made.

Video Footage

§ 87(2)(b) took a brief cell phone video at the end of the incident of PO Chu and PO Chambers walking back to their patrol car. However, he did not capture the allegations.

Mediation, Civil and Criminal Histories

- Mediation was rejected by § 87(2)(b) as he stated he wished to file a lawsuit regarding this incident.
- No notice of claim has been filed by § 87(2)(b) with regards to this incident as of April 8, 2016.

● [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint.
- PO Carlo Chu has been a member of service for nine years. He has no previous substantiated cases, and two prior CCRB cases with a total of three allegations § 87(2)(g)
- PO Hillary Chambers has been a member of service for seven years. She has no previous substantiated allegations and only one CCRB complaint involving two allegations of a frisk and search of a person.

Potential Issues

§ 87(2)(b) identified § 87(2)(b) “Uncle § 87(2)(b) and § 87(2)(b) as witnesses to this incident. Database searches were conducted but contact was never established with these

individuals. § 87(2)(b) refused to provide a statement or confirm if she witnessed the incident. She believed § 87(2)(b) filed the complaint because he was bored.

Findings and Recommendations

Allegation A- Abuse of Authority: PO Carlo Chu did not obtain medical treatment for § 87(2)(b)

Allegation B- Abuse of Authority: PO Hillary Chambers did not obtain medical treatment for § 87(2)(b)

Allegation C –Abuse of Authority: PO Carlo Chu refused to provide his name and shield number to § 87(2)(b)

Allegation D- Abuse of Authority: PO Hillary Chambers refused to provide her name and shield number to § 87(2)(b)

It is undisputed that PO Chu and PO Chambers responded to § 87(2)(b) and spoke to § 87(2)(b) and advised him and § 87(2)(b) to settle their problems in Civil Court.

§ 87(2)(b) was interviewed at Dunkin Donuts on 2801 Knapp Street in Brooklyn on February 11, 2016 (See Board Review, Civilian Statements). § 87(2)(b) alleged that after the officers told him that he would have to go to Landlord/tenant court, he requested an ambulance and explained his medical conditions, suffering from asthma and a brain aneurysm. One of the officers remarked “You seem to be walking around just fine” and told him to go back inside the house. The officers did not request an ambulance. § 87(2)(b) further alleged that he then requested their names and shield numbers and the officers ignored the request and continued to their vehicle.

PO Chu and PO Chambers were interviewed at the CCRB on March 23, 2016 (See Board Review, MOS Statements). Both acknowledged interacting with § 87(2)(b) but denied that he ever requested any medical treatment in their presence. § 87(2)(b) appeared to be in normal condition. They both indicated that their conversation ended when they told § 87(2)(b) to pursue his landlord dispute in Civil Court. They both denied that he requested their names or shield numbers.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g). Therefore it is recommended that **Allegations A, B, C and D** be closed as **unsubstantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer:

Title/Signature

Print

Date